

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,386.62, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$0.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$6,386.62.

Plaintiff to file order on Motion, as well as submit Judgment.

12. 9:00 AM CASE NUMBER: L26-03854
CASE NAME: VELOCITY INVESTMENTS LLC VS. DONPREYEL MARTIN
MOTION FOR STAY OF PROCEEDINGS PENDING ARBRITRATION
FILED BY:
TENTATIVE RULING:

Defendant has filed a Motion to stay proceedings pending arbitration. However, there is no evidence that Defendant provided notice to the Plaintiff.

Disposition

This Motion will be continued to 12/15/26, 9am.

Defendant to provide notice of the Motion and hearing date to Plaintiff.

13. 9:00 AM CASE NUMBER: MSL21-04880
CASE NAME: DISCOVER BANK VS MRAZ
FOR ENTERING JUDGMENT PURSUANT TO DEFENDANTS DEFAULT UNDER SETTLEMENT AND

RELEASE AGREEMENT
FILED BY: DISCOVER BANK
TENTATIVE RULING:

Background

Plaintiff filed, on 5/19/26, a Motion to enter judgment pursuant to stipulation, along with a Declaration. The papers were served by mail to the address where Plaintiff had personally served the Defendant with a copy of the Complaint and Summons in this matter.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$7,723.57, less any credits for payments received, plus costs.

Defendant made total payments in the amount of \$5,760; costs, per Declaration, are \$360; thus, the judgment amount should be \$2,323.57.

The Stipulation was filed on 6/23/26.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$2,323.57.

Plaintiff to file order on Motion, as well as submit Judgment.

14. 9:00 AM CASE NUMBER: N26-0757
CASE NAME: QUALITY LOAN SERVICE CORP. VS. ALL CLAIMANTS TO SURPLUS FUNDS
PETITION FOR RELEASE OF SURPLUS FUNDS
FILED BY: QUALITY LOAN SERVICE CORP.
TENTATIVE RULING:

After a review of the Petition, this court finds that Petitioner has notified all relevant parties under Section 2924j of the Civil Code, of the existence of surplus funds, and of the Petition to deposit the funds, as well as of the date of the hearing.

Moreover, this court finds, under Section 2924j(b) and (c) of the Civil Code, that Petitioner has exercised due diligence to determine the priority of written claims to the trustee's sale surplus proceeds, and has determined that there is a conflict between potential claimants.

Disposition